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Could California schools really ban Takis and Flamin' Hot Cheetos?

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Kids love them. Parents hate them. Now, California lawmakers are weighing in on fiery Flamin' Hot Cheetos and similar snacks that contain artificial dyes.

Assembly Bill 2316, introduced Tuesday, aims to ban in public schools food products that contain certain harmful synthetic colors, including the ones that give Takis and Flamin' Hot Cheetos their ruddy, finger-staining colors. The six dyes targeted in the bill are yellow 5, yellow 6, blue 1, blue 2, green 3 and red 40, as well as titanium dioxide, a coloring agent that has been banned in European foods since 2022. The dyes are not just prevalent in crunchy, bright-colored chips. They are also used in a host of other foods that are available in cafeterias and vending machines, from applesauce to cereal.

A 2021 study from the California Office of Environmental Health Hazard Assessment linked the consumption of artificial food dyes with hyperactivity and other neurobehavioral effects in some children. The report noted that current federal levels for safe intake of these chemicals were established by the U.S. Food and Drug Administration decades ago, as far back as the 1960s, and do not reflect new research or address the rise in the number of youth diagnosed with attention deficit/hyperactivity disorder (ADHD), which has increased from about 6.1% of children and teens to 10.2% in the past 20 years.

"The science is complicated but the purpose of the bill is not," Assemblymember Jesse Gabriel, D-Encino, who proposed the bill, said in the March 12 press conference alongside celebrity chef Tom Colicchio. "This is about protecting our students from chemicals that have been proven to harm children and interfere with their ability to learn."

Gabriel, who is diagnosed with ADHD, stressed that the intention of the bill is not to ban any specific foods or products from being sold in California. Rather, the intention is to put pressure on manufacturers to use natural ingredients like turmeric or beet juice to color their products, as they have done in the European Union. Froot Loops is a good example. In the U.S., the cereal contains blue 1. In the European Union, it does not.

"The goal here is to encourage companies to do the right thing and make minor modifications to products if they want their products to be sold in California public schools," he said in the press conference.

The majority of schools don't serve chips like Takis or Flamin' Hot Cheetos. But they do serve a long list of foods that contain these synthetic dyes, according to data compiled by the nonprofit Environmental Working Group. Pop-Tarts, owned by the Kellogg Company, contains blue 1, blue 2 and red 40. Kraft fat-free mayonnaise contains yellow 6 and blue 1. Even a whole grain bread product from Tyson made the list — its ingredient list includes yellow 5 and yellow 6. So the point of AB 2316 is not to ban chips like Takis at California public schools. It's to put pressure on major food corporations to clean up their ingredients.

Overall, Gabriel called the U.S. "a total global outlier" when it comes to food safety.

"It's not just the 25-plus nations in the E.U. that have banned a lot of these chemicals," he said. "Countries around the world, including far less developed nations with far less resources … in Latin America and Africa and the Middle East, are taking steps to protect their kids."

Flamin' Hot Cheetos and Takis, which contain yellow 6 and red 40, are not just beloved chips but cultural phenomena that have inspired viral celebrity videos and even a film that was nominated for an Oscar this year. This is not the first time Flamin' Hot Cheetos have come under fire, either; schools across the country have been

banning the curly crunchies since 2012, and the snack allegedly forced a Tennessee teenager's gallbladder removal back in 2018. An email sent by SFGATE to Frito-Lay, the parent company behind Flamin' Hot Cheetos, did not receive a response prior to publication.

If Gabriel's name sounds familiar, it's because he is the same lawmaker behind last year's widely discussed AB 418, the California Food Safety Act, which took aim at the manufacturing and sale of food products, like Skittles, that contain four common chemicals: brominated vegetable oil, potassium bromate, propylparaben and red dye 3. That bill passed the California Legislature last fall and was signed by Gov. Gavin Newsom in October. It will go into effect Jan. 1, 2027.

"Signing this into law is a positive step forward on these four food additives until the United States Food and Drug Administration (FDA) reviews and establishes national updated safety levels for these additives," Newsom wrote in his statement to the California State Assembly at the time.

AB 2316 now heads to the Assembly Education Committee, where it is expected to be heard in the coming weeks.

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